

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

VERIFIED COMPLAINT

-----X
BABACARE NDIAYE

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT and POLICE OFFICER
JEREMIAH WILSON

Index No.:

Defendants,
-----X

Plaintiff, by his attorney, JOHN O'GARA, as and for his Verified Complaint, upon information and belief, at all times hereinafter alleges:

1. That Plaintiff resides and at all times hereinafter mentioned resided in the City of New York, County of New York, State of New York.
2. That at all times hereinafter mentioned Defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned Defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and is a department of the City of New York, duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned Defendant, POLICE OFFICER JEREMIAH WILSON, was a New York City Police Officer.
5. That prior to the institution of this action and within ninety (90) days from the date when the cause of action accrued herein, a notice of claim in writing was duly served upon the City of New York for each named Defendant, in accordance with Section 50(e) of the General Municipal Law.

6. That this action was not commenced until the expiration of thirty (30) days after such notice of claim and was presented, and the City of New York and the other Defendants have neglected and/or refused to make adjustment or payment thereon.
7. That a hearing has been held pursuant to Section 50(h) of the General Municipal Law.
8. That this action is being commenced within one year and ninety days after the causes of action accrued herein, and within one year of the notices of claim being served, and that Plaintiff has complied with all prerequisites to the filing of this action.
9. Plaintiff, brings this action under 42 U.S.C. Sec. 1983 and related state laws seeking compensatory and punitive damages and attorneys fees under 42 U.S.C. Sec. 1988 for the defendants' violation of their rights afforded by the United States and New York Constitutions and under the laws of the State of New York, including the right to be free from malicious prosecution.
10. Defendants THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER JEREMIAH WILSON being an employee of the New York City Police Department, violated plaintiff's civil rights without just and probable cause.
11. Defendant CITY OF NEW YORK is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such is responsible for the practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department and the New York County District Attorney's Office.
12. That Defendant CITY OF NEW YORK negligently hired, screened, trained, supervised, controlled and disciplined those persons employed by the New York City Police Department and

the New York County District Attorney's Office who were involved in the malicious prosecution of Plaintiff BABACARE NDIAYE.

13. Defendant POLICE OFFICER JEREMIAH WILSON at all times hereinafter mentioned was employed by the City of New York.

14. Defendants and their employees and agents were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New York and/or the City of New York and defendants were also acting within the scope of and in furtherance of their employment.

15. That Plaintiff Babacare Ndiaye was not guilty of any criminal acts.

16. That notwithstanding Plaintiff's obvious and avowed innocence, he was arrested on or about February 27, 2016, held over two nights in custody at various locations and was then released upon posting \$10,000.00 bail.

17. That Plaintiff was charged with a violation of New York Penal Law 110-160.15. The docket number assigned was 2016NY014761.

18. That the Defendants, their agents, servants and employees, as set forth above, intended to confine Plaintiff; that Plaintiff was conscious of the confinement; that Plaintiff did not consent to the confinement and that the confinement was not otherwise privileged.

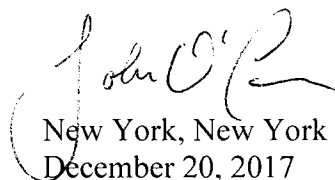
19. That Defendants, without probable cause or any justification chose to charge and maliciously prosecute the Plaintiff for crimes of which he was plainly innocent, and that Plaintiff was required to appear in Court on said charge.

20. That the Defendants falsely, negligently, intentionally, knowingly, recklessly, intentionally and maliciously commenced and continued prosecution of Plaintiff by the filing of an accusatory instrument without probable cause.
21. That Defendants knew, or should have known, through the exercise of reasonable care and the use of proper procedure that the investigation into this matter was flawed and incomplete and that criminal prosecution of Plaintiff was improper under the circumstances.
22. That on or about September 23, 2016 the District Attorney's office declined to prosecute said case against Plaintiff.
23. That as a result of the aforesaid malicious prosecution, Plaintiff suffered great indignities, humiliation, ridicule, and suffered great fear, emotional distress and anxiety.
24. Malice in the prosecution is inferred by the prosecution of Plaintiff despite a total absence of probable cause.
25. That the actions of Defendants in prosecuting Plaintiff were outrageous and beyond the acceptable norms of society.
26. That Defendants acted with the desire to cause emotional distress, or acted under circumstances known to them which made it substantially certain that Plaintiff would suffer emotional distress.
27. Defendants acted with utter disregard for the consequences of their actions.
28. As a result of the aforesaid, Plaintiff suffered intentional infliction of emotional distress.
29. That Plaintiff is entitled to punitive damages.

30. That Plaintiff was denied of his rights privileges and immunities guaranteed by the United States Constitution, 42 USC §1983, 1985 and the laws of the State of New York.
31. That the aforesaid actions were done pursuant to an official municipal policy or custom of the Defendants, their employees and agents, which involved indiscriminate prosecution, for the purpose of thwarting the fair administration of justice.
32. That the Defendants were deliberately indifferent to the use of improper procedures in maliciously prosecuting civilians, especially African Americans, and established a custom, policy or practice of encouraging, approving or tolerating the use of said improper procedures.
33. That Plaintiff is entitled to compensatory damages.
34. That the amount of damages sought by the plaintiff exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, the plaintiff demands a liability judgment against the defendants, punitive and compensatory damages, the awarding of reasonable attorney's fees, costs and disbursements of this action; and granting such other and further relief as this Court deems just and proper.

Dated:


New York, New York
December 20, 2017

Yours, etc.

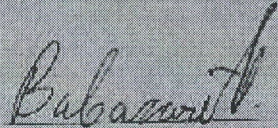
JOHN O'GARA ESQ.
Attorney for Plaintiff BABACARE NDIAYE
270 Madison Avenue, suite 1400
New York, New York 10016
(212) 481-8679

VERIFICATION

The undersigned, being duly sworn, hereby swears and affirms to the truth of the following under the penalty of perjury:

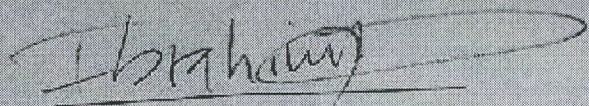
1. That my name is Babacare Ndiaye and I am the Plaintiff in this action.
2. I have read the foregoing Verified Complaint and know the contents thereof; that the same are true to my own knowledge or true upon information and belief.

Dated: New York, New York
December 20, 2017


BABACARE NDIAYE

State of New York
ss:
County of New York

Sworn before me this 20th day of December 2017


Notary Public

KABA IBRAHIMA
Notary Public, State of New York
No. 01186351822
Qualified in Bronx County
Commission Expires 12/20/2020